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The All India Political Parties Meet (AIPPM)

Ryan International School
Greater Noida Model
United Nations 2025



Letter from the Executive Board

Greetings Members!

It gives us immense pleasure to welcome you to this simulation of Aippm at RISGN Model United Nations 2025. We look forward to an enriching and rewarding experience. This study guide is by no means the end of research, we would very much appreciate if the Parliamentarians are able to find new realms in the agenda and bring it forth in the committee. Such research combined with good argumentation and a solid representation of facts is what makes an excellent performance. In the session, the executive board will encourage you to speak as much as possible, as fluency, diction or oratory skills have very little importance as opposed to the content you deliver.

So just research and speak and you are bound to make a lot of sense. We are certain that we will be learning from you immensely and we also hope that you all will have an equally enriching experience. In case of any queries feel free to contact us. We will try our best to answer the questions to the best of our abilities. We look forward to an exciting and interesting committee, which should certainly be helped by the all-pervasive nature of the issue. Hopefully we, as members of the Executive Board, do also have a chance to gain from being a part of this committee. Please do not hesitate to contact us regarding any doubts that you may have. All the Best!

Executive Board



Section I : Background

Introduction:

The freedom of speech is regarded as the first condition of liberty. It occupies a preferred and important position in the hierarchy of the liberty, it is truly said about the freedom of speech that it is the mother of all other liberties. Freedom of Speech and expression means the right to express one's own convictions and opinions freely by words of mouth, writing, printing, pictures or any other mode. In modern time it is widely accepted that the right to freedom of speech is the essence of free society and it must be safeguarded at all time. The first principle of a free society is an untrammelled flow of words in an open forum. Liberty to express opinions and ideas without hindrance, and especially without fear of punishment plays significant role in the development of that particular society and ultimately for that state. It is one of the most important fundamental liberties guaranteed against state suppression or regulation. Freedom of speech is guaranteed not only by the constitution or statutes of various states but also by various international conventions like Universal Declaration of Human Rights, European convention on Human Rights and fundamental freedoms, International Covenant on Civil and Political Rights etc. These declarations expressly talk about protection of freedom of speech and expression. It is one of the fundamental rights of the Constitution of India.

Why to Protect Freedom of Speech:

Speech is a medium of one's expression. It's a way for a human being to express his or her thoughts. It is what segregates social animals from others and forms the basic foundation of human society. There are many contradictions and similarities between human rights and constitutional rights, but the right

to freedom of expression concentrates on both areas being an important element of social and political life. Nevertheless, the proper implementation and extent of these rights are questioned. Freedom of speech offers human being to express his feelings to other, but this is not the only reason; purpose to protect the freedom of speech. There could be more reasons to protect these essential liberties.

1) For the Discovery of Truth by Open Discussion: According to it, if restrictions on speech are tolerated, society prevents the ascertainment and publication of accurate facts and valuable opinion.

2) Free Speech as an aspect of Self-fulfillment and Development: Freedom of speech is an integral aspect of each individual's right to self-development and self-fulfillment. Restriction on what we are allowed to say and write or to hear and read will hamper our personality and its growth. It helps an individual to attain self-fulfillment.

3) For Expressing Belief and Political Attitudes: Freedom of speech provides opportunity to express one's belief and show political attitudes. It ultimately results in the welfare of the society and state. Thus, freedom of speech provides a mechanism by which it would be possible to establish a reasonable balance between stability and social change.

4) For Active Participation in Democracy: Democracy is most important feature of today's world. Freedom of speech is there to protect the right of all citizens to understand political issues so that they can participate in smooth working of democracy. That is to say, freedom of speech strengthens the capacity of an individual in participating in decision-making.



Section I : Background

Thus we find that protection of freedom of speech is very much essential. Protection of freedom of speech is important for the discovery of truth by open discussion, for self- fulfillment and development, for expressing belief and political attitudes, and for active participation in democracy. The present study is intended to present the provisions of the American and Indian Constitution which recognize the freedom of speech and expression, the basic fundamental rights of human being. It is also to be examined that what is judicial trend in interpreting the freedom of speech and expression provisions. The study also covers the comparison between the approaches of both countries as far as freedom of speech is concerned.



Section II: Freedom of Speech in India

Pre-Independence

Free speech, which was once respected in earlier times, was not so allowed in the later ages. However, different movements have seen its exposure come forward and reform the society. The Bhakti period was one where different modes of expressions broke several stereotypes and combated social evils. These similar modes continued through rich culture and literature. Literature has always been a medium to generate public conscience and to spread awareness regarding matters of social importance. The right to freedom and speech of expression has always taken new forms, but has remained an inseparable part of human society. At the time of British rule, absolute freedom was not granted. On practical grounds, many speeches which influenced the people towards freedom were banned. People were also charged with sedition in this regard. There were several newspapers and journals which became important tools during India's freedom struggle. but there struggle with governmental regulations. This goes against many modern principles and our right to freedom of speech and expression in the Constitution of India. The development of constitutionally guaranteed fundamental human rights in India was inspired by historical examples such as England's Bill of Rights (1689), the United States Bill of Rights (approved on 17 September 1787, final ratification on 15 December 1791) and France's Declaration of the Rights of Man (created during the revolution of 1789, and ratified on 26 August 1789). Under the educational system of British Raj, students were exposed to ideas of democracy, human rights and European political history. The Indian student community in England was further inspired by the workings of parliamentary democracy and Britishers political parties.

In 1919, the Rowlatt Act gave extensive powers to the British government and police, and allowed indefinite arrest and detention of individuals, warrant-less searches and seizures, restrictions on public gatherings, and intensive censorship of media and publications. The public opposition to this act eventually led to mass campaigns of non-violent civil disobedience throughout the country demanding guaranteed civil freedoms, and limitations on government power. Indians, who were seeking independence and their own government, were particularly influenced by the independence of Ireland and the development of the Irish constitution. Also, the directive principles of state policy in Irish constitution were looked upon by the people of India as an inspiration for the independent India's government to comprehensively tackle complex social and economic challenges across a vast, diversenation and population.

In 1928, the Nehru Commission composing of representatives of Indian political parties proposed constitutional reforms for India that apart from calling for dominion status for India and elections under universal suffrage, would guarantee rights deemed fundamental, representation for religious and ethnic minorities, and limit the powers of the government. In 1931, the Indian National Congress (the largest Indian political party of the time) adopted resolutions committing itself to the defence of fundamental civil rights, as well as socio-economic rights such as the minimum wage and the abolition of untouchability and serfdom. Committing themselves to socialism in 1936, the Congress leaders took examples from the Constitution of the Soviet Union, which inspired the fundamental duties of citizens as a means of collective patriotic responsibility for national interests and challenges.



Section II: Freedom of Speech in India

Post-Independence

Task of developing a constitution for the nation was undertaken by the Constituent Assembly of India, composing of elected representatives. The Constituent Assembly first met on December 9, 1946 under the presidency of Dr. Sachidanand, later Dr. Rajendra Prasad was made its President. While members of Congress composed of a large majority, Congress leaders appointed persons from diverse political backgrounds to responsibilities of developing the constitution and national laws. Notably, Bhimrao Ramji Ambedkar became the chairperson of the drafting committee, while Jawaharlal Nehru and Sardar Vallabhbhai Patel became chairpersons of committees and sub committees responsible for different subjects. A notable development during that period having significant effect on the Indian constitution took place on 10 December 1948 when the United Nations General Assembly adopted the Universal Declaration of Human Rights and called upon all member states to adopt these rights in their respective constitutions. The fundamental rights were included in the First Draft Constitution (February 1948), the Second Draft Constitution (17 October 1948) and final Third Draft Constitution (26 November 1949), prepared by the Drafting Committee.

The drafting of the Constitution and its adoption gave a new interpretation to the right of freedom of speech where it was considered to be an important part of society. The right to freedom of speech and expression was said to be part of the democratic spirit of the country. At the same time, its absoluteness is not the part of our constitutional scheme. The law of sedition has always been a barrier to one's freedom of speech and expression. Freedom of speech under the Constitution of India

and the reasonable restrictions In India, is granted by Article 19(1) (a). However, this right of freedom to speech and expression is not completely unchecked. Article 19(2) allows for reasonable restrictions to be imposed on all fundamental rights, including that to freedom of speech and expressions. The parliamentarians are expected to come up with detailed research on the relations between fundamental rights and reasonable restrictions with special focus on the particular agenda. Freedom of speech enjoys special position as far India is concerned. The importance of freedom of expression and speech can be easily understand by the fact that preamble of constitution itself ensures to all citizens inter alia, liberty of thought, expression, belief, faith and worship. The constitutional significance of the freedom of speech consists in the Preamble of Constitution and is transformed as fundamental and human right in Article 19(1)

(a) as "freedom of speech and expression". Explaining the scope of freedom of speech and expression Supreme Court has said that the words "freedom of speech and expression" must be broadly constructed to include the freedom to circulate one's views by words of mouth or in writing or through audiovisual instrumentalities. Freedom of Speech and expression means the right to express one's own convictions and opinions freely by words of mouth, writing, printing, pictures or any other mode. It thus includes the expression of one's idea through any communicable medium or visible representation, such as gesture, signs, and the like. Moreover, it is important to note that liberty of one must not offend the liberty of others. Patanjali Shastri, J. in A.K. Gopalan case, observed, "man as a rational being desires to do many things, but in a civil society his desires will have to be controlled with the exercise of similar desires by other individuals". It



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therefore includes the right to propagate one's views through the print media or through any other communication channel e.g. the radio and the television. Every citizen of this country therefore has the right to air his or their views through the printing and or the electronic media subject of course to permissible restrictions imposed under Article 19(2) of the Constitution. In sum, the fundamental principle involved here is the people's right to know.

Freedom of speech and expression should, therefore, receive generous support from all those who believe in the participation of people in the administration. We can see the guarantee of freedom of speech under following heads. Meaning and Scope: Article 19(1)(a) of Indian Constitution says that all citizens have the right to freedom of speech and expression. Freedom of Speech and expression means the right to express one's own convictions and opinions freely by words of mouth, writing, printing, pictures or any other mode. It thus includes the expression of one's idea through any communicable medium or visible representation, such as gesture, signs, and the like.

This expression connotes also publication and thus the freedom of press is included in this category. Free propagation of ideas is the necessary objective and this may be done on the platform or through the press. This propagation of ideas is secured by freedom of circulation. Liberty of circulation is essential to that freedom as the liberty of publication. Indeed, without circulation the publication would be of little value. The freedom of speech and expression includes liberty to propagate not one's views only. It also includes the right to propagate or publish the views of other people; otherwise this freedom would not include the freedom of press.

Freedom of expression has four broad special purposes to serve: 1) It helps an individual to attain self-fulfilment. 2) It assists in the discovery of truth. 3) It strengthens the capacity of an individual in participating indecision-making. 4) It provides a mechanism by which it would be possible to establish a reasonable balance between stability and social change. 5) All members of society would be able to form their own beliefs and communicate them freely to others.

In sum, the fundamental principle involved here is the people's right to know. Freedom of speech and expression should, therefore, receive generous support from all those who believe in the participation of people in the administration. It is on account of this special interest which society has in the freedom of speech and expression that the approach of the Government should be more cautious while levying taxes on matters of concerning newspaper industry than while levying taxes on other matters.

Explaining The Scope Of Freedom Of Speech And Expression Supreme Court Has Said That The Words "Freedom Of Speech And Expression" Must Be Broadly Constructed To Include The Freedom To Circulate One's Views By Words Of Mouth Or In Writing Or Through Audiovisual Instrumentalities. It Therefore Includes The Right To Propagate One's Views Through The Print Media Or Through Any Other Communication Channel E.G. The Radio and the Television. Every Citizen Of This Country Therefore Has The Right To Air His Or Their Views Through The Printing And Or The Electronic Media Subject Of Course To Permissible Restrictions Imposed Under Article 19(2) Of The Constitution. Freedom to air one's view is the lifeline of any democratic institution and any attempt to stifle,



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suffocate or gag this right would sound a death knell to democracy and would help usher in autocracy or dictatorship. The modern communication mediums advance public interest by informing the public of the events and development that have taken place and thereby educating the voters, a role considered significant for the vivacious functioning of a democracy. Therefore, in any setup more so in a democratic setup like ours, broadcasting of news and views for popular consumption is a must and any attempt to deny the same must be frowned upon unless it falls within the mischief of Article 19(2) of the Constitution. The various communication channels are great spreaders of news and views and make a considerable impact on the minds of readers and viewers and our known to mould public opinion on vitals issues of national importance. The freedom of speech and expression includes freedom of circulation and propagation of ideas and therefore the right extends to the citizen to use the media to answer the criticism levelled against the views propagated by him. Every free citizen has an undoubted right to lay what sentiments he pleases. This freedom must, however, be exercised with circumspection and care must be taken not to trench on the rights of other citizens or to jeopardise public interest.



Section III: Contemporary Scenario

● **Government has No Monopoly on Electronic Media:** The Supreme Court widened the scope and extent of the right to freedom of speech and expression and held that the government has no monopoly on electronic media and a citizen has under Art. 19(1)(a) a right to telecast and broadcast to the viewers/ listeners through electronic media television and radio any important event. The government can impose restrictions on such a right only on grounds specified in clause (2) of Art. 19 and not on any other ground. A citizen has fundamental right to use the best means of imparting and receiving communication and as such have an access to telecasting for the purpose.

● **Commercial Advertisements:** The court held that commercial speech (advertisement) is a part of the freedom of speech and expression. The court however made it clear that the government could regulate the commercial advertisements, which are deceptive, unfair, misleading and untruthful. Examined from another angle the Court said that the public at large has a right to receive the "Commercial Speech". Art. 19(1) (a) of the constitution not only guaranteed freedom of speech and expression, it also protects the right of an individual to listen, read, and receive the said speech.

● **Telephone Tapping: Invasion on Right to Privacy:** Telephone tapping violates Art. 19(1) (a) unless it comes within grounds of restriction under Art. 19(2). Under the guidelines laid down by the Court, the Home Secretary of the centre and state governments can only issue an order for telephone tapping. The order is subject to review by a higher power review committee and the period for telephone tapping cannot exceed two months unless approved by the review authority.

Freedom of Press

The fundamental right of the freedom of press

implicit in the right the freedom of speech and expression is essential for the political liberty and proper functioning of democracy. The Indian Press Commission says that "Democracy can thrive not only under the vigilant eye of legislature, but also under the care and guidance of public opinion and the press is par excellence, the vehicle through which opinion can become articulate." Unlike the American Constitution, Art. 19(1)(a) of the Indian Constitution does not expressly mention the liberty of the press but it has been held that liberty of the press is included in the freedom of speech and expression. The editor of a press for the manager is merely exercising the right of the expression, and therefore, no special mention is necessary of the freedom of the press. Freedom of press is the heart of social and political intercourse. It is the primary duty of the courts to uphold the freedom of press and invalidate all laws or administrative actions, which interfere with it contrary to the constitutional mandate.

Right to Information:

The right to know, 'receive and impart information has been recognized within the right to freedom of speech and expression. A citizen has a fundamental right to use the best means of imparting and receiving information and as such to have an access to telecasting for the purpose. The right to know has, however, not yet extended to the extent of invalidating Section 5 of the Official Secrets Act, 1923 which prohibits disclosure of certain official documents. One can conclude that 'right to information is nothing but one small limb of right of speech and expression.

Ground of Restrictions: Clause (2) of Article 19 contains the grounds on which restrictions on the freedom of speech and expression can be imposed:



Section III: Contemporary Scenario

1) Security of State: Under Article 19(2) reasonable restrictions can be imposed on freedom of speech and expression in the interest of security of State. The term "security of state" refers only to serious and aggravated forms of public order e.g. rebellion, waging war against the State, insurrection and not ordinary breaches of public order and public safety, e.g. unlawful assembly, riot, affray. Thus speeches or expression on the part of an individual, which incite to or encourage the commission of violent crimes, such as, murder are matters, which would undermine the security of State.

2) Friendly Relations with Foreign States: This ground was added by the constitution (First Amendment) Act, 1951. The object behind the provision is to prohibit unrestrained malicious propaganda against a foreign friendly state, which may jeopardise the maintenance of good relations between India, and that state. No similar provision is present in any other Constitution of the world. In India, the Foreign Relations Act, (XII of 1932) provides punishment for libel by Indian citizens against foreign dignitaries. Interest of friendly relations with foreign States, would not justify the suppression of fair criticism of foreign policy of the Government. It is to be noted that member of the commonwealth including Pakistan is not a "foreign state" for the purposes of this Constitution. The result is that freedom of speech and expression cannot be restricted on the ground that the matter is adverse to Pakistan.

3) Public Order: This ground was added by the Constitution (First Amendment) Act. 'Public order' is an expression of wide connotation and signifies "that state of tranquillity which prevails among the members of political society as a result of internal regulations enforced by the Government which they have established." Public order is something more than ordinary maintenance of law and order. 'Public

order' is synonymous with public peace, safety and tranquility. The test for determining whether an act affects law and order or public order is to see whether the act leads to the disturbances of the current of life of the community so as to amount to a disturbance of the public order or whether it affects merely an individual being the tranquility of the society undisturbed.

Anything that disturbs public tranquility or public peace disturbs public order. Thus communal disturbances and strikes promoted with the sole object of causing unrest among workmen are offences against public order. Public order thus implies absence of violence and an orderly state of affairs in which citizens can peacefully pursue their normal avocation of life. Public order also includes public safety. Thus creating internal disorder or rebellion would affect public order and public safety. But mere criticism of government does not necessarily disturb public order. In its external aspect 'public safety' means protection of the country from foreign aggression. Under public order the State would be entitled to prevent propaganda for a state of war with India. The words 'in the interest of public order' includes not only such utterances as are directly intended to lead to disorder but also those that have the tendency to lead to disorder. Thus a law punishing utterances made with the deliberate intention to hurt the religious feelings of any class of persons is valid because it imposes a restriction on the right of free speech in the interest of public order since such speech or writing has the tendency to create public disorder even if in some case those activities may not actually lead to a breach of peace. But there must be reasonable and proper nexus or relationship between the restrictions and the achievements of public order.



Section III: Contemporary Scenario

4) Decency or Morality: The words 'morality or decency' are words of wide meaning. Sections 292 to 294 of the Indian Penal Code provide instances of restrictions on the freedom of speech and expression in the interest of decency or morality. These sections prohibit the sale or distribution or exhibition of obscene words, etc. in public places. No fix standard is laid down till now as to what is moral and indecent. The standard of morality varies from time to time and from place to place.

5) Contempt of Court: Restriction on the freedom of speech and expression can be imposed if it exceeds the reasonable and fair limit and amounts to contempt of court. According to the Section 2 'Contempt of court' may be either 'civil contempt' or 'criminal contempt.'

6) Defamation: A statement, which injures a man's reputation, amounts to defamation. Defamation consists in exposing a man to hatred, ridicule, or contempt. The civil law in relating to defamation is still uncoded in India and subject to certain exceptions.

7) Incitement to an Offence: This ground was also added by the constitution (First Amendment) Act, 1951. Obviously, freedom of speech and expression cannot confer a right to incite people to commit offence. The word 'offence' is defined as any act or omission made punishable by law for the time being in force.

8) Sedition: As understood by English law, sedition embraces all those practices whether by words, or writing which are calculated to disturb the tranquility of the State and lead ignorant person to subvert the government. It should be noted that the sedition is not mentioned in clause (2) of Art. 19 as

one of the grounds on which restrictions on freedom of speech and expression may be imposed.

Digital Platforms

There is a new segment of journalism and press emerging in the online forum, specially via social platforms like You Tube, Instagram, X (Twitter), etc with You Tube having currently 460 million users in the most populous democracies of the world. In 2023, the BJP government banned a documentary by BBC on the Gujarat riots. Still, these platforms have played an important role in the general elections with their growing viewership specially amongst the younger generation. But due to the IT rules 2023 and the Digital personal data protection act 2021, their freedom is being curbed, with the government citing reasons such as national security and spreading of misinformation. While one should note that many such creators on various platforms have been arrested on charges for spreading hate speech and misinformation. In 2023, government banned 8 You Tube channels for spreading fake information by declaration of early Lok Sabha results. During the pandemic, many platforms were accused of spreading fear about the vaccines and during the recent India-Pakistan tensions, the Indian media was accused of spreading false information about the situation creating tensions at the international level. Hence, it is worthy to think how much regulation is really needed for press and specially the many growing digital platforms with millions of viewers. While freedom of speech and expression is important for a democracy like India, so is maintenance of its internal security and unity among the populace.

Artificial Intelligence

With the advent of artificial intelligence, spreading of fake information has become very easy, and many



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prominent personalities have been its victims. With lack of regulations, it is very difficult to identify real and fake videos and is a very easy means to spread false information and creating panic among people. In May 2024, a man in UP was arrested was generating deepfake of CM Yogi Adityanath referring to the Pulwama attack. The highest fake news via AI generated videos and voice clones surged in May 2024 showing fake exit polls and fake audio clips falsely claiming the resignation of Rahul Gandhi. On May 6, 2024, just before the third phase of the General Election, the Election Commission of India (ECI) issued a directive to all political parties to remove AI-generated disinformation within three hours. As per Millenium Post, political parties invested an estimated \$50 million during elections to garners support and engagement from the public. Deepfake Analysis Unit set under the Misinformation Combat Alliance is a unique initiative to allow users to send fake news and misinformation generated by Artificial Intelligence via WhatsApp. Artificial intelligence is a new platform with a lot of untapped potential which if regulated can be a new revolution towards freedom of speech and information in the most populated democracies of India.

Sedition Laws in India:

The term sedition is not a new term for India, it has been in the midst of political discussion since the days of freedom struggle. The Father of the Nation as well as his political advisor Bal Gangadhar Tilak have been arrested and imprisoned under this law. The offence under section 124-A of the Indian Penal Code, 1860 has been captioned as sedition which is very closely related to treason i.e offence against the state. The framers of the Indian constitution were adamant on one thing that India would be democracy. The aim of this article would be to

present the views of the author as to whether the law of sedition as established by the imperial government on the people of India should remain the same for today's democratic India or not. And how the judiciary has played a role in determining the law, rendering justice and preventing the arbitrary use of this law for political reasons. Sedition in itself is a comprehensive term, and it embraces all those practices, whether by word, deed, or writing, which are calculated to disturb the tranquility of the State, and lead ignorant persons to endeavor to subvert the government and the laws of the country.

History Of Sedition Laws in India.

The section corresponding to section 124A, the law that defines sedition in the IPC, was originally section 113 of Macaulay's Draft Penal Code of 1837-39, but the section was omitted from the IPC as it was enacted in 1860. James Fitzjames Stephens, the architect of the Indian Evidence Act, 1872, has been quoted as saying that this omission was the result of a mistake. Another explanation for this omission is that the British government wished to adopt more wide ranging strategies against the press including a deposit-forfeiture system and general powers of preventive action. Section 124A was introduced by the British colonial government in 1870 when it felt the need for a specific section to deal with the offence. It was one of the many draconian laws enacted to stifle any voices of dissent at that time. The immediate necessity of amending the law, in order to allow the government to deal more efficiently with seditious activities was first recognized by the British in light of increased Wahabi activities in the period leading up to 1870. With increasing incidents of mutinous activities against the British, the need to make sedition a substantive offence was widely acknowledged, and



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the insertion of a section pertaining specifically to seditious rebellion was considered exigent.

It was the recognition of this rising wave of nationalism at the turn of the 20th century which led to the bill containing the law of sedition finally being passed. The offence of sedition was incorporated under 124A of the IPC on November 25, 1870, and continued without modification till February 18, 1898. The amended legislation of 1870 was roughly structured around the law prevailing in England in so far as it drew heavily from the Treason Felony Act, the common law with regard to seditious libels and the law relating to seditious words. The Treason Felony Act, extensively regarded as one of the defining Acts of the English law pertaining to treason, imposed liability on all those who harbored feelings of disloyalty towards the Queen. Any thought connoting unfaithfulness or treachery towards the Crown, coupled with the presence of an overt act, i.e., an act from which an apparent criminal intention could be inferred, was subject to punishment within the ambit of this legislation. After the initiation of the law of sedition in 1870, it was allowed to remain in force, unaltered, for a period of 27 years. Throughout this period, one of the primary objectives of the British Government was to strengthen this law. Therefore, it ultimately approved the enactment of two cognate laws: the Dramatic Performances Act XIX of 1876 ('DPA') and the Vernacular Press Act (IX) of 1878. These Acts came to be popularly referred to as 'preventive measures'. While the former law was primarily introduced to keep a check on seditious activities in plays, the latter was formulated to actively suppress criticism against British policies and decisions in the wake of the Deccan Agricultural riots of 1875-76. Since it came into operation in 1870, the law of sedition has continued to be used to stifle voices of

protest, dissent or criticism of the government. While the indeterminate invoking of the provision has put it in the media spotlight, there has been very little academic discussion with respect to the nature of the law and its possible repeal.

Victims of Sedition Laws in Pre-Independent India:

Jogendra Chundra Bose (Queen Empress vs Jogesh Chundra Bose)

The initial cases that invoked the sedition law included numerous prosecutions against the editors of nationalist newspapers. The first among them was the trial of Jogendra Chandra Bose in 1891. Bose, the editor of the newspaper, Bangobasi, wrote an article criticizing the Age of Consent Bill for posing a threat to religion and for its coercive relationship with Indians. His article also commented on the negative economic impact of British colonialism. Bose was prosecuted and accused of exceeding the limits of legitimate criticism, and inciting religious feelings. The judge rejected the defence's plea that there was no mention of rebellion in his article. However, the proceedings against Bose were dropped after he tendered an apology.

Bal Gangadhar Tilak (Queen Empress vs Bal Gangadhar Tilak) Ironically some of the most famous sedition trials of the late 19th and early 20th century involved Indian nationalist leaders. Of these, the most well known are the three sedition trials of Bal Gangadhar Tilak, which were closely followed by his admirers nationally and internationally. The fundamental moral question that Tilak raised was whether his trials constituted sedition of the people against the British Indian government (Rajdroha) or of the Government against the Indian people (Deshdroha). Tilak's first trial began in 1897. The government claimed that some of his speeches that



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referred to Shivaji killing Afzal Khan had instigated the murder of the much reviled Plague Commissioner Rand and Lieutenant Ayherst, another British officer, the following week. Tilak was convicted of the charge of sedition, but released in 1898 after the intervention of internationally known figures like Max Weber on the condition that he would do nothing by act, speech, or writing to excite disaffection towards the government.

Annie Besant

Another famous decision was Annie Besant v. Advocate General of Madras. The case dealt with Section 4(1) of the Indian Press Act, 1910, that was framed similar to Section 124A. The relevant provision said that any press used for printing/publishing newspapers, books or other documents containing words, signs or other visible representations that had a tendency to provoke hatred or contempt to His Majesty's government...or any class of subjects (either directly or indirectly, by way of inference, suggestion, metaphor, etc.) would be liable to have its deposit forfeited. In this case an attack was leveled against the English bureaucracy. The Privy Council followed the earlier interpretation of Justice Strachey and confiscated the deposit of Annie Besant's printing press.

Mahatma Gandhi

On March 1922, Gandhi was tried before Mr. Broomfield, I.C.S., District & Sessions Judge of Ahmedabad, for sedition w.r.t. two articles, which he had written in his paper "Young India". These charges were of bringing or attempting to excite disaffection towards His Majesty's Government established by law in British India, and thereby committing offences punishable under Section 124 A of the Indian Penal Code.

Sedition Laws : Post Independence:

After India attained independence in 1947, the offence of sedition continued to remain in operation under 124A of the IPC. Even though sedition was expressly excluded by the Constituent Assembly as a ground for the limitation of the right to freedom of speech and expression, this right was still being curbed under the guise of this provision of the IPC. On three significant occasions, the constitutionality of this provision was challenged in the courts. These cases shaped the subsequent discourse in the law of sedition.

Following the decision in Niharendu Majumdar, 124A was struck down as unconstitutional in Romesh Thappar v. State of Madras, Ram Nandan v. State, and Tara Singh v. State ('Tara Singh'). In Tara Singh, the East Punjab High Court relied on the principle that a restriction on a fundamental right shall fail in if the language restricting such a right is wide enough to cover instances falling both within and outside the limits of constitutionally permissible legislative action affecting such a right. During the debates surrounding the first amendment to the Constitution, the then Prime Minister Jawaharlal Nehru was subjected to severe criticism by members of the opposition for the rampant curbs that were being placed on the freedom of speech and expression under his regime. This criticism, accompanied by the rulings of the courts in the aforementioned judgments holding section 124A to be unconstitutional, compelled Nehru to suggest an amendment to the Constitution. Thus, through the first amendment to the Constitution, the additional grounds of 'public order' and 'relations with friendly states' were added to the Article 19(2) list of permissible restrictions on the freedom of speech and expression guaranteed under Article 19(1) (a). Further, the word



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‘reasonable’ was added before ‘restrictions’ to limit the possibility of misuse by the government. In the parliamentary debates, Nehru stated that the intent behind the amendment was not the validation of laws like sedition. He described section 124A as ‘objectionable and obnoxious’ and opined that it did not deserve a place in the scheme of the IPC.

Constitutionality of Seditious Laws In India:

It is important to note that under the Indian law of sedition, the events at the public meeting, even if completely true, do not even come close to establishing an offence. In Kedar Nath Singh’s Case, 5 judges of the Supreme Court –a Constitution bench made it clear that allegedly seditious speech and expression may be punished only if the speech is an ‘incitement’ to ‘violence’, or ‘public disorder’. Subsequent cases have further clarified the meaning of this phrase. In Indra Das v. State of Assam and Arup Bhuyan v. State of Assam, the Supreme Court unambiguously stated that only speech that amounts to “incitement to imminent lawless action” can be criminalized. In Shreya Singhal v. Union of India, the famous 66A judgment, the Supreme Court drew a clear distinction between “advocacy” and “incitement”, stating that only the latter could be punished. Therefore, advocating revolution, or advocating even violent overthrow of the State, does not amount to sedition, unless there is incitement to violence, and more importantly, the incitement is to ‘imminent’ violence. For instance, in Balwant Singh v. State of Punjab, the Supreme Court overturned the convictions for ‘sedition’, (124A, IPC) and ‘promoting enmity between different groups on grounds of religion, race etc.’, (153A, IPC), and acquitted persons who had shouted – “Khalistan zindabaad, Raj Karega Khalsa,” and, “Hinduan Nun Punjab Chon Kadh Ke Chhadange, Hun Mauka Aya Hai Raj Kayam Karan Da”, late

evening on 31 October 1984, i.e. a few hours after Indira Gandhi’s assassination – outside a cinema in a market frequented by Hindus and Sikhs in Chandigarh.

Thus, words and speech can be criminalised and punished only in situations where it is being used to incite mobs or crowds to violent action. Mere words and phrases by themselves, no matter how distasteful, do not amount to a criminal offence unless this condition is met. As such Section 124A states that, Whoever, by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards the Government established by law in shall be punished with imprisonment for life, to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

Sedition Laws In Practice:

● Manoj Shinde, Journalist, August 2006: As editor of the Surat Saamna, the Gujarat police alleged he used “abusive words” for Chief Minister Narendra Modi while criticising him for his handling of the Surat floods.

● Binayak Sen, Doctor, May 2007: A staunch critic of Chhattisgarh’s vigilante army, the Salwa Judum, Sen was convicted for life in 2010 for helping the Maoists. An international uproar resulted in an abrupt order from the Supreme Court granting him bail.

● Bharat Desai, Editor, June 2008: Gujarat Chief Minister Narendra Modi’s government filed a case of sedition against the editor of the Times of India because it had published articles in the newspaper which questioned the appointment of the city police chief and alleged he was linked to an erstwhile



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underworld don.

● Arundhati Roy, Writer, November 2010: A private complaint was filed against Roy for delivering a speech that the complainant alleged was anti-India.

● Aseem Trivedi, Cartoonist, January 2012: Sedition charges were slapped against him for allegedly insulting national symbols using his cartoons.

● Kudankulam Protestors, March 2012: 11 Kudankulam protesters were charged with sedition for leading a protest against a nuclear power plant which they felt would pose an environmental threat.

IMPORTANT CASE LAWS :

KEDAR NATH SINGH V STATE OF BIHAR
Kedarnath Singh, a member of the Forward Communist Party, was prosecuted for sedition related to a speech that he made criticising the government for its capitalist policies. Singh challenged the constitutionality of the sedition law. The Supreme Court bunched Singh's case with other similar incidents where persons were prosecuted under the sedition law. It was held that the law is constitutional and covered written or spoken words that had the implicit idea of subverting the government by violent means. However, this section would not cover words that were used as disapprobation of measures of the government that were meant to improve or alter the policies of the government through lawful means. Citizens can criticize the government as long as they are not inciting people to violence against the government with an intention to create public disorder. The court drew upon the Federal Court's decision in *Niharendru Dutt Majumdar* where the court held that offence of sedition is the incitement to violence or the tendency or the effect of bringing a

government established by law into hatred or contempt or creating disaffection in the sense of disloyalty to the state. While the Supreme Court upheld the validity of section 124A, it limited its application to acts involving intention or tendency to create disorder, or a disturbance of law and order, or incitement to violence.

BALWANT SINGH AND ANR. V STATE OF PUNJAB
The accused had raised the slogan "Khalistan Zindabad" outside a cinema hall just after the assassination of Prime Minister Indira Gandhi. The slogans raised by the accused had no impact on the public. Two individuals casually raising slogans could not be said to be exciting disaffection towards the government. Section 124A would not apply to the facts and circumstances of this case.

SANSKAR MARATHE V STATE OF MAHARASHTRA & Ors.
The case arose out of the arrest of Aseem Trivedi, a political cartoonist who was involved with the India Against Corruption movement. Trivedi was arrested in 2012 in Mumbai for sedition and insulting the National Emblems Act. The court considered the question of how it could intervene to prevent the misuse of section 124A. Held: The cartoons were in the nature of political satire, and there was no allegation of incitement to violence, or tendency or intention to create public disorder. The Court issued guidelines to all police personnel in the form of preconditions for prosecutions under section 124A: Words, signs, or representations must bring the government into hatred or contempt, or must cause, or attempt to cause disaffection, enmity or disloyalty to the government. The words, signs or representation must also be an incitement to violence or must be intended or tend to create public disorder or a



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reasonable apprehension of public disorder. Words, signs or representations, just by virtue of being against politicians or public officials cannot be said to be against the government. They must show the public official as representative of the government. Disapproval or criticism of the government to bring about a change in government through lawful means does not amount to sedition. Obscenity or vulgarity by itself is not a factor to be taken into account while deciding if a word, sign or representation violates section 124A. In order to prosecute under section 124A, the government has to obtain a legal opinion in writing from the law officer of the district (the judgment does not specify who this is) and in the next two weeks, a legal opinion in writing from the public prosecutor of the state.

A ROAD AHEAD

A colonial legacy like sedition law, which presumes popular affection for the state as a natural condition and expects citizens not to show any enmity, contempt, hatred or hostility towards the government established by law, does not have a place in a modern democratic state like India. The case for repealing the law of sedition in India is rooted in its impact on the ability of citizens to freely express themselves as well as to constructively criticise or express dissent against their government. The existence of sedition laws in India's statute books and the resulting criminalization of 'disaffection' towards the state is unacceptable in a democratic society.

These laws are clearly colonial remnants with their origin in extremely repressive measures used by the colonial government against nationalists fighting for Indian independence.

The use of these laws to harass and intimidate media personnel, human rights activists, political activists, artists, and public intellectuals despite a Supreme Court ruling narrowing its application, shows that the very existence of sedition laws on the statute books is a threat to democratic values. We recommend the following changes to bring this aspect of Indian laws in tune with most modern democratic frameworks including the United Kingdom, USA, and New Zealand.

- Recent National Crime Records Bureau (NCRB) data suggests that the number of sedition cases has increased in recent years as police in certain states clamp down on protesters.
- Compared to other offences, sedition remains a rare crime (it accounts for less than 0.01% of all IPC crimes).
- But within India, some parts are emerging as sedition hotspots. Assam and Jharkhand, for instance, with 37 sedition cases each, account for 32% of all sedition cases between 2014-2018. In Jharkhand, the police have used sedition to charge different types of protesters.
- In January, more than 3,000 protesters against the Citizenship Amendment Act (CAA) were charged with sedition while in 2019, more than 3,300 farmers were charged with sedition for protesting about land disputes.
- Though police in these states and elsewhere are charging more people with sedition, few cases result in a conviction.
- Since 2016, only four sedition cases have seen a conviction in court. One reason for this could be that sedition as an offence has no solid legal grounding in India.
- The Indian Constitution lays out freedom of expression as a fundamental right which many legal scholars have argued prevents sedition from being an offence.



Section V: Legal Oversight

Unlawful Activities (Prevention) Act (UAPA):

- Sedition is a colonial relic and a broadly worded preventive provision that should only be read as an emergency measure.
- Partly to address this, in 1967, the government enacted the Unlawful Activities (Prevention) Act (UAPA).
- This was meant to be a more specific law intended to impose more reasonable restrictions on freedom of speech in the interests of sovereignty and integrity of India.
- In 2018, there were 1,182 cases registered under UAPA. And almost all these cases (92%) were concentrated in five states (Uttar Pradesh, Jammu and Kashmir, Assam, Jharkhand and Manipur).

Prevention of Damage to Public Property Act:

- UAPA and sedition though are just two of the many offences that can be committed against the state.
- Under the NCRB's breakdown of offences against the state, the biggest offence comes under the Prevention of Damage to Public Property Act.
- The Act, which lays down the law about damage to public property, accounted for more than 80% of all offences against the state in 2018 and has increased since 2016.

Anti-national elements:

- In addition to these offences, NCRB, starting in 2017, introduced a new category of crime: incidents of violence by "anti-national elements".
- These anti-national elements- bucketed into four groups: o north-east insurgents o 'jihadi' terrorists o Naxalites o other terrorists
- This category had 1,012 cases registered against them in 2018.

Sedition laws in international jurisdiction

- The United Kingdom (UK) completely removed the seditious libel through the Coroners and Justice Act, 2009.
- In Australia, following the recommendations of the Australian Law Reform Commission (ALRC) the term sedition was removed and replaced with references to 'urging violence offences'.

Significance of the Law:

- Toxifying the harmful elements: No doubt, the law has its utility in combating anti national, secessionist and terrorist elements.
- Bringing stability: The law effectively protects the elected government from attempts to get overthrown with violence and illegal means. The continued existence of the government established by law is an essential condition of the stability of the State. The other side of the coin:
- Unsuitable for democracy: The Sedition law is a relic of colonial legacy and unsuited in a democracy like India. Right to question, criticize and change rulers is very fundamental to the idea of democracy. However, such questions get constructed as sedition.
- Constraint on freedom: It is a constraint on the legitimate exercise of constitutionally guaranteed 'freedom of speech and expression'.